

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF VENTURA**

Tentative Ruling

**2025CUPP055131: JOHN DOE R.H., AN INDIVIDUAL vs DOE 1, A PUBLIC ENTITY
09/01/2026 in Department 21
Motion to Transfer Venue**

Tentative Rulings. Parties and counsel appearing for oral argument should address the tentative decision. Parties may submit on the tentative decision by email, with a copy to all other parties in the matter, to courtroom21@ventura.courts.ca.gov before 8:00 a.m. on the day set for the hearing, with a subject line that includes “SUBMISSION ON TENTATIVE”, Case Number, Title and Party. If fewer than all parties submit on the tentative, the hearing will proceed, and the tentative ruling is subject to change. The clerk cannot advise if you should still appear or not. The decision of whether to appear for a hearing is to be made by the parties and their counsel. (Dept. 21 Rules & Procedures, p. 4, § II.I.)

The following is a statement of the Court’s tentative ruling. The Court may adopt, modify or reject the tentative ruling after hearing. The tentative ruling has no legal effect unless and until adopted by the Court.

Motion: Plaintiff’s Motion to Transfer Venue (*unopposed*).

Tentative Ruling: Plaintiff’s Motion to Transfer Venue is DENIED without prejudice.

Plaintiff may file a First Amended Complaint pursuant to Code of Civil Procedure, section 472, clarifying the location of the alleged incident.

Background: The Complaint for Damages was filed on December 4, 2025, by Plaintiff John Doe R.H., an individual against Doe 1, a public entity, pleading causes of action for (1) negligence, (2) breach of mandatory statutory duties, (3) intentional infliction of emotional distress, and (4) violation of the Bane Act. The Complaint alleges Plaintiff suffered acts of childhood sexual assault at the California Youth Authority, located at 3100 Wright Rd, Camarillo, CA 93010, a juvenile hall and/or youth detention center, owned, operated, controlled, managed, maintained, inspected, patrolled, and overseen by Defendant Doe 1 (Ventura County CYA). (Complaint, p. 2, par. 1.)

In the Complaint, Plaintiff alleges Plaintiff was a detainee of Defendant and placed in the care and custody of the Ventura County CYA where Plaintiff was subjected to various acts of childhood sexual assault, sexual abuse, sexual harassment and/or molestation. (See Complaint, p. 6, par. 14, 15, & 26).

On April 24, 2026, Plaintiff filed a Motion to Transfer (April 2026 Transfer Motion). No Opposition was filed. On June 8, 2026, the Court denied the April 2026 Transfer Motion without prejudice, with leave to refile clarifying the location of the injury. The Court noted Plaintiff’s counsel’s supporting declaration (April 2026 Declaration) contained internal inconsistencies regarding the location of the injury, i.e., counsel’s Memorandum and Points of Authorities (MPA) (April 2026 MPA) alleged the abuse occurred in Chino, California, located in San Bernardino County, but in the April 2026 Declaration counsel asserted the abuse occurred in Bakersfield, California, located in Kern County.

On June 26, 2026, Plaintiff filed a second MPA and a second declaration of Plaintiff's counsel, collectively June 2026 MPA and Declaration. Plaintiff's 2026 MPA and Declaration consistently assert the location of the alleged abuse to have occurred in a facility located in San Bernardino County at 15180 Euclid Avenue, Chino, California. However, the June 2026 MPA and Declaration are inconsistent with the Complaint which identifies the location of the alleged abuse as the Ventura County CYA.

Analysis

“An action or proceeding against a county, or city and county, a city, or local agency, may be tried in the county, or city and county, or the county in which the city or local agency is situated, unless the action or proceeding is brought by a county, or city and county, a city, or local agency, in which case it may be tried in any county, or city and county, not a party thereto and in which the city or local agency is not situated” (CCP, § 394.)

“Except as otherwise provided by law and subject to the power of the court to transfer actions or proceedings as provided in this title, the superior court in the county where the defendants or some of them reside at the commencement of the action is the proper court for the trial of the action. If the action is for injury to person or personal property or for death from wrongful act or negligence, the superior court in either the county where the injury occurs or the injury causing death occurs or the county where the defendants, or some of them reside at the commencement of the action, is a proper court for the trial of the action” (CCP, § 395, subd. (a).)

CCP, section 396b, subdivision (a), provides the following:

Except as otherwise provided in [CCP] Section 396a, if an action or proceeding is commenced in a court having jurisdiction of the subject matter thereof, other than the court designated as the proper court for the trial thereof, under this title, the action may, notwithstanding, be tried in the court where commenced, unless the defendant, at the time he or she answers, demurs, or moves to strike, or, at his or her option, without answering, demurring, or moving to strike and within the time otherwise allowed to respond to the complaint, files with the clerk, a notice of motion for an order transferring the action or proceeding to the proper court, together with proof of service, upon the adverse party, of a copy of those papers. Upon the hearing of the motion the court shall, if it appears that the action or proceeding was not commenced in the proper court, order the action or proceeding transferred to the proper court.” (Code Civ. Proc., § 396b., subd. (a).)

“The court may, on timely motion, order transfer of an action ‘[w]hen the court designated in the complaint is not the proper court.’ [Citation]. The moving party must overcome the presumption that the plaintiff has selected the proper venue. [Citation]. Thus, ‘[i]t is the moving defendant's burden to demonstrate that the plaintiff's venue selection is not proper under any of the statutory grounds.’ [Citation]. In opposing the motion to change venue, ‘[t]he plaintiff may bolster his or her choice of venue with counter affidavits consistent with the complaint's theory of the type of action but amplifying the allegations relied upon for venue.’ [Citation].” (*Fontaine v. Superior Court* (2009) 175 Cal.App.4th 830, 836; see also *Crestwood Behavioral Health, Inc. v. Superior Court* (2021) 60 Cal.App.5th 1069, 1075 [“plaintiff's choice of venue is presumed correct”].)

“Venue is determined based on the complaint as it stands at the time the motion to change is made” (*Haurat v. Superior Ct. for Los Angeles Cnty.* (1966) 241 Cal. App. 2d 330, 337.)

Here, Plaintiff has failed to overcome the presumption that the initial venue selected, Ventura County, is the proper venue and failed to establish cause to transfer venue. In the Complaint, Plaintiff pled with specificity the location of the alleged abuse was the Ventura County CYA. Plaintiff's June 2026 MPA and Declaration provide little information supporting the new claim that the alleged abuse occurred at a location in San Bernardino County. Further, Plaintiff has not filed an amended complaint consistent with the June 2026 MPA and Declaration. Rather, the Complaint continues to allege the alleged abuse occurred at the Ventura County CYA, making Ventura County the proper venue pursuant to the Complaint. (*Haurat v. Superior Ct. for Los Angeles Cnty.* (1966) 241 Cal. App. 2d 330, 337.)

Based on the foregoing, the Court DENYS the motion without prejudice for Plaintiff to file a First Amended Complaint by right. (CCP, § 472.)